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Restaurants - New state law expands outdoor dining - AB 61 provides restaurants with regulatory flexibility on a number of key issues

October 13, 2021 | Santa Cruz Sentinel (CA)
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SACRAMENTO >> A bill that will help struggling restaurants by empowering local jurisdictions and give the Department of Alcohol Beverage Control greater flexibility for businesses to expand outdoor dining was signed by Gov. Newsom on Friday.

Assemblyman and author of the legislation, Jesse Gabriel, D-Woodland Hills, said that many neighborhood restaurants are the backbone of communities across the state and are barely hanging on. He acknowledged that outdoor dining has been a critical lifeline that has helped keep these establishments' doors open during challenging times.

Assembly Bill 61 provides restaurants with regulatory flexibility on several key issues, including enabling more outdoor food preparation and service, allowing restaurants to better use their own spaces for increased outdoor dining capacity, and extending existing Alcohol Beverage Control board orders allowing for alcohol service on outdoor premises. The bill also includes an urgency clause, meaning the measure goes into effect immediately.

The restaurant industry has been particularly hard hit due to COVID-19 restrictions and many Monterey County cities have allowed businesses to serve outdoors with public health and the survival of small businesses the focus. Many of those businesses have made sizable investments to keep afloat. The legislation has the potential to make outdoor dining a permanent feature for businesses throughout the region.

Gabriel said he sees outdoor dining as a lifeline for restaurants and AB 61 aims to give a level of certainty that outdoor dining will be permitted into the future.

Last week, the Carmel City Council once again approved a 30-day extension for restaurant parklets and private wine tasting spaces with rental fees for parking spaces due this week.

All existing temporary parklets are allowed to remain until close of business on Nov. 12, but will have to pay the monthly rental fee of $842 per single parking space no later than 5 p.m., on Wednesday. Fees not received on time may cause the city to remove a parklet and other materials in the public right-of-way at the business owner's expense. Restaurants that remove parklets before Oct. 12, need not pay the fee.

The city of Carmel is considering adopting a long-term policy regarding parklets.

The city of Monterey has allowed outdoor dining and heaters on municipal wharf one and two on the public right-of-way. It currently has no fees for dining permits outdoors and does not have any parklets — parking spaces used for outdoor eating and drinking — due in part to the city's work in the last few years that tested and constructed outdoor seating areas along Alvarado Street. Those have proved successful, along with outdoor dining on the public right-of-way on Fisherman's Wharf and Cannery Row.

The city of Seaside reports that it is working on an updated and permanent outdoor dining program that would apply to dining areas created in parking spaces and along sidewalks. This program would replace the temporary use of parking and outdoor spaces by restaurants, which was allowed under the city's local emergency declaration.

Seaside city staff is currently finalizing the program details, which will then require approval by the city council to be adopted and implemented. The draft program required businesses to pay both a one-time permit application fee

and an annual permit fee but the fee and fee amount are subject to council input and approval.

The city of Pacific Grove has a program in effect through May 2022 with fees and hearings waived for sidewalk dining permits, encroachment permits to allow for reserving parking for curbside and carry-out service, administrative use permits to allow temporary outdoor dining on private property, and its parklet program to allow outdoor dining in city parking spaces.

AB 61 has bipartisan support as state legislators have seen the level of suffering the restaurant industry has endured and are eager to help those businesses.

Though the National Restaurant Association reports modest employment growth in the past two months, with California leading the nation in job gains, employment remains below pre-pandemic levels and nearly four in five restaurants are understaffed. The association reported 2.5 million jobs lost in 2020. During the first three months of the pandemic, the restaurant and foodservice industry lost around $120 billion in sales. As of August 2021, California had 234,800 fewer eating and drinking establishments than it did in August 2019.

Gabriel has said that legislators view AB 61 as part of a multi-pronged approach to restaurant relief. There is relief at the federal level through Small Business Administration programs, at the state level through small business grants and loans, and then this regulatory effort that reduces some of the regulatory burden, extending the flexibility to help increase sales and get these businesses back on solid footing.

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  James Herrera, B. (2021, October 13). Restaurants New state law expands outdoor dining - AB 61 provides restaurants with regulatory flexibility on a number of key issues. *Santa Cruz Sentinel (CA),* p. 4. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/1859ACCEECA30468.